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Provision of June 1, 2023
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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stazione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, Member, and Cons. Fabio
Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD TO Legislative Decree No. 101 of August 10, 2018, containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC";

HAVING REGARD TO Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING Dr. Agostino Ghiglia;

PREMISED

1. The complaint and the investigative activity

With a note dated XX, Mr. XX submitted a complaint in which he reported a violation of personal data protection. In particular, he stated that he had received "periodically from Camedì Srl messages on (...) private number to remind me of appointments for medical visits (...) never requested" and that he had found, in the pre-filled 730 tax return, certain invoices (which totaled 4,000.00 euros) issued under his tax code concerning services related to the year 2021 provided by the Camedì Medical Center s.r.l. (hereinafter "Center"), which he had never availed himself of.

The complainant also specified that "from an exchange of certified emails (PEC) it emerged that (at the Camedì Medical Center s.r.l.) they are following a patient with the same name as mine and that everything regarding his services is reported to me (hence the reason for the continuous appointment SMS) and also his invoices are attributed to my tax code," highlighting, moreover, that he had "again reported the incident to the center with several PECs. In writing, I have never received confirmation of anything; they only responded to me once by phone confirming that they had resolved the problem, but I continue to receive messages from the center for visits that I never requested and I fear that in the

next pre-filled 730 declaration I will find other invoices attributed to me."

Following the request for information from this Authority, in which certain informative elements useful for the evaluation of the case were requested pursuant to Article 157 of the Code (note of XX, prot. n. XX), the Center provided feedback, stating that:

- "Camedi srl, for different reasons, came into contact with and entered into its database used for medical-health activities the names of 2 namesakes: Mr. XX (whom we will clarify as XX) and Mr. XX (whom we will clarify as XX). Both have been correctly entered into our database with the same Name and Surname but obviously with different addresses and especially different Tax Codes";
- "during 2021, Patient 'XX' availed himself of some services for which 2 related invoices were issued (invoices which, moreover, do not contain data concerning 'health status'). The invoices were issued by the Front Office and delivered to 'XX' who took them and kept them without highlighting that the address and tax code were not his. Obviously, the Front Office Operator and therefore Camedi could not know about the error of namesake at this point";
- "since the invoices were physically delivered to Patient 'XX', that is, to the Patient who availed himself of the services, no violation of privacy complained of by Patient 'XX' occurred since they were not his personal data but, if anything, of Patient 'XX' himself, the recipient of the services. Following the report from Patient 'XX', we contacted Patient 'XX' to report the situation and for the correct completion of his 730. Patient 'XX' understood the problem, which was partly generated by him, did not present any contestation and is still our..."

****Patient**;**

- "No information about Patient "XX" has therefore been sent to others, and the only information that he has about Patient "XX" is "(...) deducible from the tax drawer, namely the number and date of the 2 "incriminated" invoices, the data of Camedi srl, the amount, and the wording "SR – Specialist visit or intervention";
- "To resolve the issue of the 730/Tax Drawer, Mr. "XX" has repeatedly received the necessary clarifications both by phone with our Administrative Contact and via Pec; in particular, the last Pec from XX clearly stated that we were in contact with our Accountant and the Revenue Agency to resolve the situation and that the Agency had confirmed the existence of other similar cases in other Companies due to homonymy, and it was indicated that the User could directly report in his tax drawer what was incongruous and could remove it from the calculations of deductible expenses since being an amount of "deduction" and not of "income" (taxable) the passage did not create problems with the Agency. Regarding Mr. "XX"'s "fear" of finding errors in the next pre-filled 730 declaration, we can confirm that, from our side, everything appears to be in order at the moment";
- "The problem of homonymy that involved our management system of appointments and caused the generation of the automatic SMS that Mr. "XX" rightly complained about receiving has been definitively resolved by our technicians before the summer and should not recur in the future; this problem was also generated by the issuance of the invoice to Mr. "XX" linking the issuance of the invoice to the Services" (note from XX).

****2. Assessments of the Department on the treatment carried out and notification of the violation referred to in Article 166, paragraph 5 of the Code****

In relation to the facts described in the complaint and the outcome of the verification provided by the data controller in question, the Office, with note of XX (prot. n. XX), notified the Center, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, inviting it to produce to the Guarantor defensive writings or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code; as well as Article 18, paragraph 1, of Law No. 689 of 24/11/1981). In particular, the Office, in the aforementioned act, deemed that the Center had carried out data processing in violation of the principle of accuracy and integrity and confidentiality of data (Article 5, paragraph 1, letters d) and f) of the Regulation) and, by compiling the invoice related to the services enjoyed by the homonymous individual containing the information (address and tax code) of the complainant, had made a communication of data related to health (deducible from the services provided at the Center, for which the relevant invoices were issued) in the absence of a suitable legal

basis, in violation of the basic principles of processing referred to in Article 9 of the Regulation and the obligations regarding security referred to in Article 32 of the Regulation.

By email of XX, the Center submitted its defensive memoranda, in which, in particular, it highlighted that:

- "The event occurred due to the presence in the database for medical-health activities of two homonymous individuals. This homonymy contributed to an incorrect attribution of tax code and residence address at the time of delivery of some invoices, issued in relation to the respective medical-health services. Consequently, the aforementioned invoices appeared in the tax drawer of the complainant, although the relevant medical-health services were enjoyed by the homonymous individual, to whom the invoices were physically delivered, without him highlighting any error. This attribution error also caused the incorrect sending to the complainant of automatic SMS messages, which should have instead been addressed to the homonymous individual, aimed at reminding them of the imminence of upcoming appointments at the Center";
- "The event occurred following an incorrect attribution of tax code and residence address, also due to the homonymy between the two individuals involved, at the time of delivery of some invoices, issued in relation to the respective medical-health services. No report was highlighted by the homonymous patient at the time of delivery of the invoices nor subsequently";
- "Following the report from the complainant, the homonymous patient was informed of the incorrect communication of his data to a third party with the same name and surname, who, however, is unable to uniquely trace his identity, since the tax code and residence address present in the invoice belong to the same third party. Appropriate information was also provided for the correction in the compilation of the 730, following discussions with the Accountant and the Revenue Agency, which confirmed the existence of other similar cases of homonymy. Finally, it is noted that the homonymous individual did not raise complaints or particular observations once the situation was communicated to him";
- "In order to prevent the recurrence of the reported events, a specific note of attention regarding the homonymy in question has been inserted into the database";
- "With note of XX, the Company responded to the Guarantor Authority, within the 30-day deadline set by the Authority itself in the request for information sent to the Company on XX";
- "The incorrect communication to the third party, claimant is limited to the presence in the tax drawer of the latter of some invoices, issued in relation to certain healthcare services, which were, however, utilized by a namesake patient, to whom these invoices were physically delivered, without any error being highlighted by him. The claimant, however, has only information that another individual with the same name (among the hundreds with the same first and last name present in Italy) has received such healthcare services, but is unable to uniquely trace the identity of the namesake, since the tax code and the residential address present on the invoice are, in fact, his.

3. Outcome of the investigative activity

Taking note of what has been represented by the Center in the documentation on file and in the defense memoranda, it is observed that:

1. for "personal data" it is meant "any information relating to an identified or identifiable natural person ('data subject')"; and, for "data related to health," included among the "special" categories of personal information, the "personal data concerning the physical or mental health of a natural person, including the provision of health care services, which reveal information about his or her health status" (art. 4, par. 1, no. 1 and 15 of the Regulation; recital no. 35);
2. personal information must be processed in compliance with the principles applicable to the processing of personal data, listed in art. 5 of the Regulation. In particular, the data must be "accurate and, where necessary, kept up to date" and "all reasonable measures must be taken to erase or rectify inaccurate data without delay in relation to the purposes for which they were processed" (principle of 'accuracy'); the data must also be "processed in a manner that ensures appropriate security (...)" including protection, by means of appropriate technical and organizational measures, against unauthorized or unlawful processing and against accidental loss, destruction or damage" (principle of 'integrity and confidentiality') (art. 5, par. 1, lett. d) and f) of the Regulation). The adequacy of such

measures must be assessed by the data controller in relation to the nature of the data, the subject, the purposes of the processing, and the risk to the rights and freedoms of the data subjects, taking into account the risks arising from the destruction, loss, alteration, unauthorized disclosure, or access to personal data transmitted, stored, or otherwise processed (art. 32, par. 1 and 2 of the Regulation); 3. in the healthcare sector, information about health status can only be communicated to the data subject and can be communicated to third parties based on an appropriate legal basis or at the request of the data subject, with prior written delegation from the latter (art. 9 of the Regulation and art. 84 of the Code in conjunction with art. 22, paragraph 11, Legislative Decree of August 10, 2018, no. 101).

4. Conclusions

In light of the evaluations set forth above, considering the statements made by the data controller during the investigation and noting that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under art. 168 of the Code ("Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or exercise of the powers of the Guarantor"), the elements provided by the Center, as the data controller, in the aforementioned defense memoranda are not suitable to accept the requests for dismissal, as they do not allow overcoming the objections notified by the Office with the cited initiation act of the proceeding.

In fact, considering that the provision of a healthcare service related to a specifically indicated person constitutes information attributable to the notion of health data pursuant to art. 4, par. 1, no. 15 of the Regulation and Cons. no. 35, it is noted that the Center has carried out data processing in violation of the principle of accuracy and integrity and confidentiality of the data of the claimant and his namesake (art. 5 par. 1, lett. d) and f) of the Regulation) and, through the erroneous compilation of the invoice, has communicated health-related data (derivable from the services provided at the Center, for which the relevant invoices were issued) in the absence of an appropriate legal basis, in violation of the basic principles of processing set forth in art. 9 of the Regulation and the security obligations under art. 32 of the Regulation.

For these reasons, the illegality of the processing of personal data carried out by the Center is noted, in the terms stated in the motivation, for the violation of arts. 5, par. 1, lett. d) and f), 9 and 32 of the Regulation.

In this context, considering that the conduct has exhausted its effects and the Center has declared to have adopted measures to prevent the repetition of the complained conduct, drawing attention to cases of homonymy, the conditions for the adoption of corrective measures under art. 58, par. 2, of the Regulation are not currently met.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i) and 83 of the Regulation; art. 166, paragraph 7, of the Code).

The violation of arts. 5, par. 1, lett. d) and f), 9 and 32 of the Regulation caused by the conduct of the... ****Centro**** is subject to the application of the administrative pecuniary sanction pursuant to Article 83, paragraph 4, letter a) and paragraph 5, letter a) of the Regulation.

It should be noted that the Authority, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the Board [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019).

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into account the principles of effectiveness, proportionality, and deterrence, as indicated in Article 83, paragraph 1, of the Regulation, in light of the elements provided in Article 83, paragraph 2, of the Regulation, with respect to which it is noted that:

1. The Authority became aware of the event following a complaint from an interested party (Article 83, paragraph 2, letter h) of the Regulation);
2. The processing of data carried out by the Center involved data capable of revealing information about the health of two interested parties (Article 83, paragraph 2, letters a) and g) of the Regulation);
3. Regarding the subjective element, no intentional attitude on the part of the data controller emerges, although the interested party has repeatedly reported the incorrect processing (Article 83, paragraph 2, letter b) of the Regulation);
4. The data controller has cooperated with the Authority and has not been the subject of previous measures from the Authority for relevant violations (Article 83, paragraph 2, letters f) and e) of the Regulation);
5. The incident also occurred due to the homonymy of the names and surnames of the interested parties (Article 83, paragraph 2, letter k) of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction provided for by Article 83, paragraph 4, letter a) and 5, letter a) of the Regulation, in the amount of €10,000.00 (ten thousand) for the violation of Articles 5, 9, and 32 of the Regulation, as an administrative pecuniary sanction considered, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and deterrent.

It is also considered that the accessory sanction of publication on the Authority's website of this provision, provided for by Article 166, paragraph 7 of the Code and Article 16 of the Regulation of the Authority No. 1/2019, should be applied, also taking into account the type of personal data subject to unlawful processing.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

****ALL OF THE ABOVE STATED, THE AUTHORITY**** declares the unlawfulness of the processing of personal data carried out by the medical Center Camedi s.r.l. for the violation of Articles 5, 9, and 32 of the Regulation.

****ORDERS**** pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, as well as Article 166 of the Code, to the Medical Center Camedi s.r.l., located at Via Antonio Tantardini No. 15 – 20136 Milan - C.F./P.Iva: 05920700969, in the person of the legal representative pro tempore, to pay the sum of €10,000.00 (ten thousand) as an administrative pecuniary sanction for the violations indicated in this provision; it is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction.

****ORDERS**** the aforementioned Center, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €10,000.00 (ten thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981.

****DISPOSES**** pursuant to Article 166, paragraph 7, of the Code, the full publication of this provision on the Authority's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, June 1, 2023

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Ghiglia

****THE SECRETARY GENERAL****

Mattei